

TENTATIVE RULINGS

LAW & MOTION

DEPT C25

Judge Gassia Apkarian

The court will hear oral argument on all matters at the time noticed for the hearing, **unless the Court has stated that the matter is off calendar.** Do not call the department to verify if you should appear or not. Please read below for the information. **If you would prefer to submit to the Court's tentative without oral argument, advise all counsel first to find out if all parties are submitting, and then the moving party is to telephone the clerk at (657)622-5225 with the status of all parties.** If the moving party has submitted on the matter and there are no appearances by any party at the hearing, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by 12:00 p.m. the day before the hearing. Generally, motions will not be continued or taken off the calendar after the tentative has been posted. **The moving party shall give notice of the ruling.**

July 07, 2026
10:00 AM

If you want a transcript, you must provide your own court reporter.

#	Case Name	Tentative
101	The Country Club Trust #3080, Vecchio Real Estate Corp., As Trustee vs. Ta 26-01550851	DEMURRER TO COMPLAINT Defendant Mai Ta ("Defendant") demurs to the third, fourth, and fifth causes of action asserted in the Complaint of plaintiff The Country Club Trust #3080, Vecchio Real Estate Corp., as Trustee ("Plaintiff"). Defendant does not oppose the demurrer to the fourth cause of action. Thus, the demurrer to the fourth cause of action is SUSTAINED without leave to amend. Third Cause of Action for Unfair Competition Defendant argues this cause of action fails because the relief sought by Plaintiff is monetary, not restitution, and not permitted under the UCL.

		“While the scope of conduct covered by the UCL is broad, its remedies are limited.” (Korea Supply Co. v. Lockheed Martin Corp. (2003) 29 Cal.4th 1134, 1144.) “A UCL action is equitable in nature; damages cannot be recovered.” (Ibid.) Rather, “ ‘[p]revailing plaintiffs are generally limited to injunctive relief and restitution.’ ” (Ibid.) Plaintiff alleges that Defendant’s fraud denied Plaintiff title to the subject property and seeks restitution and disgorgement of Defendant’s ill-gained profits and an order directing Defendant to transfer title of the property to Plaintiff. The latter is a prayer for injunctive relief, which Defendant does not argue is improper. Thus, even if the prayer for restitution of Defendant’s ill-gained profits is not proper, the third cause of action is supported by Plaintiff’s allegations that it was denied title and its prayer for injunctive relief. Therefore, the Demurrer to the third cause of action is OVERRULED. (See Elder v. Pacific Bell Telephone Co. (2012) 205 Cal.App.4th 841, 856, fn. 14 [“ ‘Ordinarily, a general demurrer does not lie as to a portion of a cause of action and if any part of a cause of action is properly pleaded, the demurrer will be overruled.’ ”].) Fifth Cause of Action for Unjust Enrichment Defendant argues that this cause of action fails because unjust enrichment is not a separate cause of action. There is a split of authority as to whether “unjust enrichment” is an independent cause of action. (Levine v. Blue Shield of California (2010) 189 Cal.App.4th 1117, 1138 [“Although some California courts have suggested the existence of a separate cause of action for unjust enrichment [citation], this court has recently held that ‘[t]here is no cause of action in California for unjust enrichment.’ ”].) The Court will follow Peterson v. Cellco Partnership (2008) 164 Cal.App.4th 1583, which treats unjust enrichment as a separate claim.
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102	Gutierrez vs. Gapzac Construction, Inc a California Corporation 26-01555393	Demurrer to Complaint Defendant ADU Resource Center (“Defendant”) demurs to the fourth cause of action for fraud (intentional misrepresentation) and fifth cause of action for fraud (concealment) as alleged in Plaintiff Linda Valles Gutierrez’s Complaint. Plaintiff Linda Valles Gutierrez, proceeding in pro per (“Plaintiff”) opposed the demurrer. A complaint, with certain exceptions, needs only contain a ‘statement of the facts constituting the cause of action, in ordinary and concise language’ (Code Civ. Proc., § 425.10, subd. (a)(1)) and will be upheld ‘ “so long as [it] gives notice of the issues sufficient to enable preparation of a defense.” ’ [Citation.]” (Morris v. JPMorgan Chase Bank, N.A. (2022) 78 Cal.App.5th 279, 292.) “[T]o withstand a demurrer, a complaint must allege ultimate facts, not evidentiary facts or conclusions of law.’ [Citation.]” (Morris v. JPMorgan Chase Bank, N.A. (2022) 78 Cal.App.5th 279, 292.) “However, ‘ “[t]he fact that a party has alleged more than is required to justify his right does not obligate him to prove more than is essential, and the unnecessary allegations will be treated as surplusage unless the opposing party would be prejudiced.”” (Ibid.) “No error or defect in a pleading is to be regarded unless it affects substantial rights.” (Harris v. City of Santa Monica (2013) 56 Cal.4th 203, 240.) “The primary function of a pleading is to give the other party notice so that it may prepare its case [Citation], and a defect in a pleading that otherwise properly notifies a party cannot be said to affect substantial rights.” (Ibid.) A. Fourth Cause of Action for Fraud (Intentional Misrepresentation) “To establish a claim for fraudulent misrepresentation, the plaintiff must prove: ‘(1) the defendant represented to the